who hold, or let, the tap, find their account in not only conniving at, but promoting drunkenness and midnight revels, so that most of our gaols are riotous alehouses and brothels. What profligate and debauched company of both sexes, do we see let into our gaols, that the tap may be kept running! Even condemned criminals are sometimes heated with liquor till they become outrageous, as Lewis was, who was executed at Leicester in 1782. Besides this, the gaoler's interest in the sale of liquors, may prompt him to be partial in his behaviour to his prisoners; to treat at least with neglect, those who are poor and have nothing to spend; which is the case of far the greater number: while he shall caress dishonest debtors, who take shelter in a prison, in order to live there in riot upon the property of their creditors. I am persuaded there would be fewer debtors in prison if there were no taps, and they were restrained from riot and drunkenness.

I know that by the statute of thirty-second George II a debtor has a right to send out of the gaol for liquor and other necessaries.[1] This is a very judicious provision; and very beneficial to prisoners, where they have the free use of it.[2] But some keepers there are, who find ways to restrain this privilege, for the profits of their tap: whereas if they were prohibited from all concern in the sale of liquor, this would not only remove that check, and restore to prisoners the enjoyment of the liberty they are entitled to; but would also be the means of suppressing much intemperance; and perhaps of abolishing garnish, as well as clubs or night associations.

That it is necessary to deprive gaolers of all profits arising from the tap, I am convinced, not by mere speculation, but by what I have learned from conversation with gaolers themselves. I asked two of them, whom I found candid and intelligent, "What they thought would be the most likely means of effecting a thorough reformation in gaols?" The answer I had from both, was to this purpose, "Let no licences be granted for selling beer or wine in gaols: let it be made some other way worth our while to keep them."

Gaolers should have salaries proportioned to the trust and trouble; since no office, if faithfully and humanely administered, better deserves an adequate encouragement: yet not so much as

[1] Wine is not a necessary, therefore I could wish it were under the same restriction as spirituous liquors in all prisons.

[2] "At his free will and pleasure, to send for, or to have brought to him—at seasonable times in the daytime, any beer, ale, victuals, or any other necessary food."

to raise them above attention to their duty, and the daily inspection of their gaols.

The gaol committee, which I have mentioned before, in their report of the Marshalsea prison, 14 May, 1729, after enumerating many mischiefs which they found had been occasioned by the gaoler's holding or letting the tap, draw the following conclusion: "This shows the inconveniency of the keepers having the advantage of the tap-house, since to advance the rent thereof, and to consume the liquors there vended, they not only encourage riot and drunkenness, but also prevent the needy prisoner from being supplied by his friends with the mere necessaries of life, in order to increase an exorbitant gain to their tenants."

When I was in Ireland (January 1775) I found not without some surprise, that no liquors were permitted to be sold by gaolers in any of the prisons which I then visited. Upon inquiry, I learned that there is an act against it, made in the third year of his present Majesty.[1]

No prisoner should be a turnkey.[2] It is the gaoler's duty to inspect the wards himself every day, that he may see they are clean, and not to leave this to servants.[3] He should open and unstop the windows, and order the bedding out to be aired, and the cribs to be taken out and washed, otherwise they will gather dirt, and answer no salutary end. The magistrates of Glasgow[4] have expressly ordered that "The gaoler every morning and evening, at the opening of, and before the shutting up the prison, shall personally visit every room and place therein."

He must encourage and promote cleanliness. For this reason an old or infirm man should not be a gaoler: when that is the case, all is commonly dirty. He should be compassionate to

[1] The preamble runs thus: "Whereas many frauds and abuses have been committed by gaolers . . . exacting exorbitant fees, brewing of drink, and baking of bread, which they oblige their prisoners to take from them at their own rates . . . Be it enacted . . . that no gaoler or any person in trust for him, shall brew or bake in the gaol . . . or in any place . . . for sale, or keep any shop for the selling of bread, or beer, or ale, or other liquors, under the penalty of five pounds for every such offence."

[2] A turnkey later became known as a warder, and it is interesting to note that not until 1865 was the practice of employing prisoners as warders abolished.—[Ed.]

[3] In my first journeys many county gaolers excused themselves from going with me into the felons' ward. In York Castle (in 1774) the felons told me once and again that the gaoler had not been in their ward for months. I would not have quoted a report from felons, if the turnkey, who was present, had not confirmed their testimony.

[4] I ought not here to omit my grateful acknowledgment of the politeness and civility of these gentlemen, who, on my visit to the place in January 1775, did me the honour of presenting me with the freedom of the city, in a manner truly hospitable and obliging.